

Amendment No. 1 to HB0804

Todd
Signature of Sponsor

AMEND Senate Bill No. 931

House Bill No. 804*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 53-1-102, is amended by inserting the following new subdivisions:

() "Cell-cultured food product":

(A) Means a food product intended for use as human food that is produced without slaughter by growing, in a controlled environment, cells harvested from species amenable to the Federal Meat Inspection Act (21 U.S.C. § 601 et seq.), the Federal Poultry Products Inspection Act (21 U.S.C. § 451 et seq.), or cells harvested from shellfish species or big game, game birds, or fish, as those terms are defined in § 70-1-101; and

(B) Includes food or a food additive produced in the manner described in subdivision () (A) and used as an ingredient or component in a food;

SECTION 2. Tennessee Code Annotated, Title 53, Chapter 1, Part 1, is amended by adding the following as new sections:

53-1-119.

(a) A cell-cultured food product must not be labeled as meat or a meat food product, as those terms are defined in § 53-7-202.

(b) This section does not prohibit a label indicating the species from which the cells for the cell-cultured food product were harvested, that the product was produced from the applicable species or is intended as a substitute for meat or poultry, or another similar description.

(c) A cell-cultured food product that is labeled as meat or a meat food product is not in compliance with subsection (a) and is misbranded. If the department determines that a manufacturer violated subsection (a), then the department shall assess a fine of two thousand dollars (\$2,000) for each product misbranded.

53-1-120.

(a) The department of agriculture shall promulgate rules to implement and administer a program requiring a manufacturer who sells cell-cultured food products in this state to have a permit for the sale of such products. Such rules must include, but not be limited to, provisions to establish:

(1) A fee in an amount sufficient to defray the cost of implementing and administering the permitting program;

(2) A process for the review and approval of permit applications; and

(3) Specific criteria for approval of the applications for such permits and a timeline for making a determination on the application, with the timeline to be no less than ninety (90) days nor more than one hundred eighty (180) days from the date the application is submitted.

(b) The criteria for approval of applications created under subsection (a) must not exceed the requirements set forth by the federal food and drug administration under the Federal Food, Drug, and Cosmetics Act (21 U.S.C. § 301 et seq.) or the United States department of agriculture under the federal Meat Inspection Act (21 U.S.C. § 601 et seq.) and the federal Poultry Products Inspection Act (21 U.S.C. § 451 et seq.).

(c) In order to obtain and maintain an annual permit to defray the cost of implementing and administering the permitting program as prescribed under subdivision (a)(1), a manufacturer must pay to the department a fee of one thousand dollars (\$1,000).

(d) The department shall utilize existing staff to assist in the implementation and administration of the program.

SECTION 3. For the purpose of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2025, the public welfare requiring it.